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Lawyer's Bar Number: _____

For Clerk's Use Only

Representing ☐ Self, without a Lawyer OR ☐ Attorney for ☐ Petitioner OR ☐ Respondent

SUPERIOR COURT OF ARIZONA
IN MARICOPA COUNTY

Name of Petitioner/Party A

AND

Name of Respondent/Party B

Case Number: _____

PETITION FOR DISSOLUTION OF
MARRIAGE (DIVORCE)
WITHOUT MINOR CHILDREN

STATEMENTS TO THE COURT, UNDER OATH OR AFFIRMATION

1. INFORMATION ABOUT ME:

Name: _____

Address: _____

Date of Birth: _____

Job Title: _____

Starting with today, number of months/years in a row you, have lived in Arizona.

2. INFORMATION ABOUT MY SPOUSE:

Name: _____

Address: _____

Date of Birth: _____

Job Title: _____

Starting with today, number of months/years in a row your spouse has lived in Arizona.

3. INFORMATION ABOUT MY MARRIAGE:

Date of Marriage: _____

City and state or country where we were married: _____

The following statements **MUST BE TRUE** for you to use this document and to qualify for divorce in Arizona **AND** you must check the boxes to indicate that the statements are true or your case may not proceed.

- ☐ We do not have a covenant marriage (If not sure, refer to the INSTRUCTIONS for information).
- ☐ Our marriage is broken beyond repair (“irretrievably broken”) and there is no hope of reconciliation.
- ☐ We have tried to resolve our problems through Conciliation Services or going to Conciliation Services would not work.

4. VENUE: (Check here if the following statement is true):

- ☐ This is the proper court to bring this lawsuit under Arizona law because it is the county of residence of either party or of the minor children.

5. 90 DAY REQUIREMENT:

- ☐ I OR ☐ my spouse have lived, or have been stationed while a member of the Armed Forces, in Arizona for at least 90 days before I filed this action. (WARNING: If this statement is not true, you cannot file for a divorce until it becomes true.)

6.a. COMMUNITY PROPERTY: (Check one box)

- ☐ My spouse and I did not acquire any community property during the marriage, OR
- ☐ My spouse and I did acquire community property during our marriage, and we should divide it as follows:

- ☐ Real estate located at: _____

Party A	Party B	Value
☐	☐	\$ _____

Legal Description: _____

Case Number: _____

☐ Real estate located at:	Party A	Party B	Value
_____	☐	☐	\$ _____

Legal Description: _____

☐ Household furniture and appliances:	Party A	Party B	Value
_____	☐	☐	\$ _____
_____	☐	☐	\$ _____
_____	☐	☐	\$ _____
_____	☐	☐	\$ _____
_____	☐	☐	\$ _____
_____	☐	☐	\$ _____

☐ Household furnishings:	Party A	Party B	Value
_____	☐	☐	\$ _____
_____	☐	☐	\$ _____
_____	☐	☐	\$ _____
_____	☐	☐	\$ _____
_____	☐	☐	\$ _____

☐ Other items:	Party A	Party B	Value
_____	☐	☐	\$ _____
_____	☐	☐	\$ _____
_____	☐	☐	\$ _____
_____	☐	☐	\$ _____

☐ Pension/Retirement fund/profit sharing/stock plan/401K:	Party A	Party B	Value
_____	☐	☐	\$ _____
_____	☐	☐	\$ _____
_____	☐	☐	\$ _____

Case Number: _____

	Party A	Party B	Value
☐ Motor vehicles:	☐	☐	\$ _____
Make: _____ Year: _____			
Model: _____			
VIN: _____			
Lien Holder: _____			
	Party A	Party B	Value
Make: _____ Year: _____	☐	☐	\$ _____
Model: _____			
VIN: _____			
Lien Holder: _____			

6.b. SEPARATE PROPERTY: (Check all boxes that apply.)

- ☐ I do not have any property, or separate property, that I brought into the marriage.
- ☐ My spouse, Party B, does not have any property, or separate property, that he/she brought into the marriage.
- ☐ I do have property, or separate property, that I brought into the marriage. I want this property awarded to me as described below.
- ☐ My spouse, Party B, does have property, or separate property, that he/she brought into the marriage. I want this property awarded to my spouse as described below.

Separate Property: (List the property and the value of the property, and check the box to tell the Court who should get the property.)

Description of Separate Property	Party A	Party B	Value
_____	☐	☐	\$ _____
_____	☐	☐	\$ _____
_____	☐	☐	\$ _____

7.a. COMMUNITY DEBTS: (check one box)

- ☐ My spouse and I did not incur any community debts during the marriage, OR
- ☐ My spouse and I did incur community debts during the marriage and we should divide the responsibility for these debts as follows:

Case Number: _____

Description of Debt	Party A	Party B	Amount Owed
_____	☐	☐	\$ _____
_____	☐	☐	\$ _____
_____	☐	☐	\$ _____
_____	☐	☐	\$ _____
_____	☐	☐	\$ _____

7.b. SEPARATE DEBTS: (Check all boxes that apply.)

- ☐ My spouse and I do not have any debt, or separate debt, that were incurred prior to the marriage.
- ☐ I do have debt, or separate debt that I incurred prior to the marriage, that should be paid by me as described below.
- ☐ My spouse, Party B, does have debt, or separate debt that he/she incurred prior to the marriage, that should be paid by my spouse as described below.

Description of Debt	Party A	Party B	Amount Owed
_____	☐	☐	\$ _____
_____	☐	☐	\$ _____
_____	☐	☐	\$ _____

8. TAX RETURNS: (Check the boxes that you want)

- ☐ After the Judge or Commissioner signs the Decree of Dissolution of Marriage (Divorce), we will, subject to IRS Rules and Regulations, pay federal and state taxes as follows: For the calendar year (the year that the Decree is signed) and all future calendar years, each party will, subject to IRS Rules and Regulations, file separate federal and state income tax returns. Each party will give the other party all necessary documentation to do so.
- ☐ For previous years (the years we were married, not including the year the Decree was signed), (check one box)
- ☐ The parties will file joint federal and state income tax returns. For previous calendar years, both parties will pay, and hold the other harmless from, 1/2 of all additional income taxes if any and other costs and each will share equally in any refunds. OR

- ☐ The parties will file separate federal and state income tax returns. For previous calendar years, each party will pay and hold the other harmless from any income taxes and/or incurred as a result of the filing of that party's tax return and each party will be awarded 100% of any refund received as a result of the filing of that party's tax return.

9. SPOUSAL MAINTENANCE/SUPPORT (ALIMONY): (Check the box that applies to you):

- ☐ Neither party is entitled to spousal maintenance/support (alimony), OR
- ☐ Party A OR Party B is entitled to spousal maintenance/support because: (Check one or more of the box(es) below that apply. At least one reason must apply to get spousal maintenance/ support.)
- ☐ Party A, OR ☐ Party B
- ☐ Lacks sufficient property, including property apportioned to the spouse, to provide for that spouse's reasonable needs.
 - ☐ Lacks earning ability in the labor market that is adequate to be self-sufficient.
 - ☐ Is the parent of a child whose age or condition is such that the parent should not be required to seek employment outside the home.
 - ☐ Has made a significant financial or other contribution to the education, training, vocational skills, career, or earning ability of the other spouse or has significantly reduced that spouse's income or career opportunities for the benefit of the other spouse.
 - ☐ Had a marriage of long duration and is of an age that may preclude the possibility of gaining employment adequate to be self-sufficient.

10. PREGNANCY:

- ☐ Party A IS NOT pregnant OR ☐ Party B IS NOT pregnant, OR
- ☐ Party A IS pregnant OR ☐ Party B IS pregnant,
- The baby is due on _____ (date), (and check one box below):
- ☐ Party A and Party B ARE the parents of the child, OR
- ☐ Party A or ☐ Party B IS NOT the parent of the child

11. WRITTEN AGREEMENT. CHECK ONLY IF TRUE:

- ☐ Party A and Party B have a written agreement signed by both of us about the maintenance of a spouse, division of property/debt, where the children will live, authority for legal decision-making concerning the children, parenting time, and child support, and I have attached a copy of the written agreement.
- ☐ Party A and Party B DO NOT have a written agreement signed by both of us about the maintenance of a spouse, division of property/debt, where the children will live, authority for legal decision-making concerning the children, parenting time, and child support.

REQUESTS TO THE COURT:

A. DISSOLUTION (DIVORCE):

- ☐ Dissolve our marriage and return each party to the status of a single person.

B. NAMES: My complete married name is: (Optional. Complete ONLY if you want to change your name)

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I want my legal name restored to: (List complete maiden name or legal name before this marriage)

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C. SPOUSAL MAINTENANCE/SUPPORT (ALIMONY):

- ☐ Order spousal maintenance/support to be paid by ☐ Party A, ☐ Party B through the Support Payment Clearinghouse in the amount of \$_____ per month, plus the statutory fee, beginning with the first day of the month after the judge or commissioner signs the Decree of Dissolution and continuing until the person receiving spousal maintenance/support is remarried or deceased, or for a period of _____ months.

D. COMMUNITY PROPERTY:

- ☐ Make a fair division of all community property as requested in this Petition.

Case Number: _____

E. COMMUNITY DEBTS:

☐ Order each party to pay community debts as requested in the Petition, and to personally pay any other community debts unknown to the other party. Order each party to pay, and hold the other party harmless from, debts incurred by him/her since the parties' separation on _____ (date) or from the date Party B was served with the Petition for Dissolution.

F. SEPARATE PROPERTY and SEPARATE DEBT: ☐ Award each party his/her separate debt.

G. OTHER ORDERS I AM REQUESTING: (Explain request here):

OATH OR AFFIRMATION AND VERIFICATION

I swear or affirm that the information on this document is true and correct under penalty of perjury.

Signature

Date

STATE OF _____

COUNTY OF _____

Subscribed and sworn to or affirmed before me this: _____ by
_____. (date)

(Notarial Officer's Stamp or Seal)

Notarial Officer